

**LAST WILL AND TESTAMENT
OF
DAVID LAMAR DEAL**



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[Cover Page: Not to Be Included or Filed With Testament]

**Last Will and Testament
of David Lamar Deal's
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Last Will and Testament of David Lamar Deal

ARTICLE ONE DECLARATION OF LAST WILL AND TESTAMENT

I, **DAVID LAMAR DEAL**, residing at 3405 English Turn, Ruston, Louisiana 71270, hereby make, publish, and declare this to be my Last Will and Testament ("Will"), hereby revoking all former wills or testamentary instruments made by me.

ARTICLE TWO MY FAMILY

I am married to **JUDITH MARTIN DEAL**. We have two (2) living children, whose names are:

<u>Name</u>	<u>DOB</u>
CHRISTOPHER DAVID DEAL	1/19/1971
MARCIE DEAL RAMSEY	11/13/1976

ARTICLE THREE PAYMENT OF DEBTS

I direct that all costs, fees, expenses, my unprescribed just debts, funeral and administrative expenses, all taxes imposed by either state or federal governments by reason of my death, be apportioned among all legatees in accordance with the value of the interest of each person interested in the estate bears to the total value of the interests of all persons interested in the estate as provided in La. R.S. 9:2432(A), or the corresponding provision of any future law of the State of Louisiana. After the payment of the afore described charges, expenses and taxes, I bequeath and devise my remaining property as set forth below.

ARTICLE FOUR PAYMENT OF TAXES AND ADMINISTRATIVE EXPENSES

All federal, state, foreign, or other inheritance, estate, transfer, succession, death, or similar duties and taxes, whether levied, based, or imposed upon, or measured by, property that passes by my Will, or

levied, based, or imposed upon, or measured by, any other property, shall be paid as an expense of administration, and shall not be equitably prorated or charged against the gifts provided by my Will.

ARTICLE FIVE SPECIAL BEQUEST TO SPOUSE

As a special legacy, I bequeath, devise and give unto my beloved spouse, **JUDITH MARTIN DEAL**, in full ownership, including, without limitation, all of my right, title and interest in and to the following:

- A.** Any and all automobiles, boats and motors, trailers, vans, or other vehicles which I may own or partially own at the time of my death; and
- B.** Any community property interest I may have in all IRAs, annuities, profit sharing or other pension and retirement plans at my death owned by my spouse, **JUDITH MARTIN DEAL** and held in the name of my spouse, **JUDITH MARTIN DEAL**.

In the event that my spouse, **JUDITH MARTIN DEAL**, predeceases me, I leave all of the property referenced in this Article to the David & Judith Deal Living Trust, and I direct my Trustee to administer the property in accordance with said Trust Agreement, and any amendments made thereto prior to my death.

ARTICLE SIX POUR-OVER TO EXISTING TRUST

I give, devise, and bequeath all of my property (real, personal, and mixed, and wheresoever situated), of which I may die owning, having an interest in, or may be entitled to at the time of my death, to the David & Judith Deal Living Trust, and I direct my Trustee to administer the property in accordance with said Trust Agreement, and any amendments made thereto prior to my death. If said Trust is not in existence at the time of my death, or if for any other reason the pour-over cannot be accomplished, I specifically and completely incorporate the terms of the David & Judith Deal Living Trust into this Will by reference. In such a situation, I direct my Independent Executor to establish a trust in accordance with the provisions of said Trust, and give the residue of my Estate to the Trustee of said Trust, to be administered as provided in the David & Judith Deal Living Trust.

ARTICLE SEVEN INDEPENDENT EXECUTORS

I hereby appoint **JUDITH MARTIN DEAL** as the Independent Executrix (as that term is defined in La. C.C.P. Art. 3396) of my estate, with seizin and without the necessity of posting any bond or security whatsoever. If, for any reason, **JUDITH MARTIN DEAL** should fail to qualify or is unable or unwilling to accept or continue the appointment as Independent Executrix of my estate, then I appoint **CHRISTOPHER DAVID DEAL** and **MARCIE DEAL RAMSEY** as the Independent Co-Executors of my estate, with seizin and without the necessity of posting any bond or security whatsoever.

It is my wish that the Executor or Executrix of my estate to have broad and reasonable discretion in the administration of my estate and to have all the powers permitted to an Independent Executor or Executrix (as that term is defined in La. C.C.P. Art. 3396) by Louisiana state law; and to have the ability to do anything and everything that he or she deems to be in the best interest of my estate and the heirs thereof, without the need for court approval or supervision.

ARTICLE EIGHT EXECUTOR POWERS

In accordance with the provision of Article 1572 of the Louisiana Code of Civil Procedure, I hereby expressly delegate to my Independent Executor the authority to select assets to satisfy the quantum or value as to any legacies made herein, either by formula or by specific sum. In the event I have forced heirs, my Independent Executor shall have the power to elect, select and determine which asset or assets belonging to me shall be used to satisfy the forced portion of any such forced heirs. Further, it is not my intention that the residuary legatees named herein shall receive their proportionate percentage in each and every asset forming the remainder of my Estate, but rather that they shall receive property or properties to be selected by my Independent Executor, which shall satisfy the respective percentages bequeathed to them of the remainder of my assets.

ARTICLE NINE FIDUCIARY POWERS

In addition to the powers granted by La. C.C.P. art. 3396, et seq., which are specifically incorporated herein, my Independent Executor shall have all of the powers cited in this Article. To the extent there is any conflict between the powers granted under this Article, and those granted pursuant to Louisiana law, the provisions of this Article shall prevail. My Independent Executor shall have the following powers:

A. GENERAL AUTHORITY

Generally, my Independent Executor shall have the following authority to:

1. to hold any or all of my Estate in the form of investment in which it is received;
2. to make distributions of principal to any Residuary Legatee, whether outright or in Trust as set forth in this Will;
3. to sell at public or private sale, to mortgage, pledge, or hypothecate, or to exchange or lease any stocks, notes, securities, financial holdings, or investments authorized herein, real estate, minerals, and other property, upon such terms, cash or credit, or both, as my Independent Executor may deem advisable;

4. to invest and reinvest my Estate in investments of any kind, real or personal, including, without limitation, stocks, bonds, notes, mortgages, land, minerals, royalties, leaseholds, and participation in partnerships, joint ventures, and other business enterprises, and to write or purchase call or put options, and other derivative securities;
5. to construct, repair, or demolish any improvements upon any real or immovable property;
6. to participate in any reorganization, consolidation, merger, or dissolution of any company, corporation, or limited liability company, the stocks, bonds, or securities of which may be held at any time(s);
7. to hold investments, or any part of my Estate, in common or undivided interest with others.
8. to establish bank accounts of any type, at any banking institution my Independent Executor deems appropriate;
9. to demand, receive, provide receipt for, and collect all rights, money, properties, or claims to which my Estate may be entitled, and to compromise, settle, or abandon any claim in favor of, or against, my Estate;
10. to borrow funds in such amounts, and for such purposes, as my Independent Executor may deem proper, and to purchase property on the credit of my Estate, or in connection with such borrowing, to execute and deliver promissory notes, or other evidence of indebtedness, and to mortgage or pledge all or any portion of my Estate created hereunder, to secure payment of such indebtedness, and to repay such indebtedness;
11. to employ agents, legal counsel, accountants, financial advisors, brokers, and other professionals or consultants, including any acting Independent Executor who is also a professional, and to pay their fees and expenses, including expenses of an Independent Executor's professional service firm for services provided outside his or her capacity of serving as Independent Executor;
12. to serve as an officer, director, manager, or employee of any business entity in which my Estate has an interest, or to vote, in person or by proxy, on shares of stock or membership interest which may be a part of my Estate;
13. to manage, control, operate, invest, reinvest, sell, exchange, lease, mortgage, encumber, and/or deal with the property of my Estate for, and on behalf of, my Estate, and the beneficiaries, to the same extent, and with the same powers, that any individual would have in respect to his or her own property.

B. SPECIFIC AUTHORIZATION FOR SINGLE SIGNATURE

Any bank, brokerage firm, insurance, or other financial institution, or any other third party doing business with my Independent Executor, is hereby authorized, upon the consent of the appointed Independent Executors, if more than one, to open any account in such a manner as to permit the transaction of any business upon the signature of either Independent Executor or a particular Independent Executor, rather than upon unanimous consent. To facilitate transaction of business, the joinder of an Independent Executor under this section may be indicated as to actions taken with regard to a particular investment account by my Independent Executor's signature on appropriate signature authorization forms. My Independent Executor's signature authorizing the other to act alone shall constitute that Independent Executor's joinder with all actions taken regarding the account, unless and until the signature authorization form is changed, or the bank, brokerage firm, insurance, or other financial institution, or any other third party doing business with my Independent Executor, is expressly notified in writing of my Independent Executor's withdrawal of concurrence.

**ARTICLE TEN
MISCELLANEOUS PROVISIONS AND DEFINITIONS**

A. Miscellaneous Provisions

1. Beneficiary's Spouse's Rights

It is my intent that no spouse of any named beneficiary retain or have any right to any interest in this Will or any trust created hereunder, unless specifically provided for in the Articles of this Will.

2. Contest Clause

If any beneficiary shall in any manner, directly or indirectly, attempt to contest or oppose the validity of this Will, including any amendments thereto, or commences or prosecutes any legal proceedings to set this Will aside, then in such event such beneficiary shall forfeit his or her share, cease to have any right or interest in the Trust Property, and shall be deemed to have predeceased without surviving issue.

Should any person disclaim his or her interest, in whole or in part, in any trust created for his or her benefit in this Will, the result of which would be for that person to receive Trust Property free of trust earlier than provided by the terms of the trust, then the disclaiming person shall forfeit his or her interest in the trust, shall cease to have any right or interest in the Trust Property, and shall be deemed to have predeceased me.

3. Headings of Articles, Sections, and Subsections

The headings of Articles, Sections, and Subsections used within this Will are included solely for the convenience and reference of the reader. They have no significance in the interpretation or construction of this Will. Any reference made to "this Article" or "this Section" shall refer to the article or section in which the reference is made. Any reference made to an "Article" of this Will in any document shall refer to said "Article" hereunder.

4. Number and Gender

The masculine, feminine, and neuter gender, and singular and plural number, shall each be deemed to include the other, when the context so indicates.

5. Partial Invalidity Clause

If any provision of this Will is void, invalid, or unenforceable, then the remaining provisions shall nevertheless be valid. If any trust herein established exceeds the longest permissible period, then it shall persist in its period for the longest period permissible, and then terminate and be distributed to the rightful beneficiaries hereunder at that time.

6. Powers are Personal

Each power and right granted to me, or to a beneficiary, under this Will (including the power to exercise a power of appointment) is personal, and may not be exercised by another, except that during such time the power holder is unable to act, said powers and rights may be exercised by either (a) the power holder's guardian or conservator, acting by authority of a court; or (b) the power holder's agent, as granted by a properly executed durable power of attorney that specifically authorizes said agent to exercise such power or right.

7. Survivorship Presumption

If I die under circumstances in which the timing of my death, or that of a beneficiary, cannot be established, then I will be deemed to have survived said beneficiary. If any beneficiary is Living at my death, but dies within thirty days after my death, said beneficiary shall be deemed to have predeceased me, for purposes of any distribution to said beneficiary hereunder.

B. Definitions

1. Child or Children

"Child" or "Children" includes existing and after-born children. In applying the provisions of this Will, a legally adopted child and his or her lineal descendants, are to be considered lineal descendants of the adoptive parent and that parent's lineal descendants.

2. Spouse

Unless otherwise specified, "Spouse" refers to the person to whom an individual is married, and with whom the individual is Living as husband or wife, when such person would, pursuant to the terms of this Will, become entitled to any benefit hereunder, and with whom the individual is Living as husband or wife at the time of his or her death.

This Last Will and Testament, containing eight (8) pages, has been signed in _____, _____ Parish/County, _____, on this _____ day of _____, _____.

DAVID LAMAR DEAL, Testator

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

[ATTESTATION CLAUSE AND SIGNATURES ON FOLLOWING PAGE]

In our presence, the Testator, **DAVID LAMAR DEAL**, has declared and signified that this instrument is his testament and has signed it at the end and on each other separate page, and in the presence of the Testator and each other we have hereunto subscribed our names this ____ day of _____, _____.

WITNESSES:

PRINTED NAME: _____

DAVID LAMAR DEAL, Testator

PRINTED NAME: _____

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____